

Sex Crime & Bangladesh: Advanced Quiz

Topic: Sex Crime & Bangladesh | Difficulty: Hard | Questions: 5 | Model: gemini-2.5-flash

1. Despite a High Court directive in 2013 and subsequent reiterations, what persistent challenge related to medical examination in rape cases continues to impede justice for victims in Bangladesh, particularly concerning evidentiary standards and victim dignity?

A. The mandatory requirement for DNA profiling of all accused, which is often unavailable.

B. The continued reliance on the 'two-finger test' in practice by some medical professionals, despite its scientific invalidity and abolition. (correct)

C. The absence of specialized forensic psychology units to assess victim trauma.

D. A legal mandate for victims to undergo a polygraph test, which is often inconclusive.

Explanation: Despite High Court directives declaring the 'two-finger test' unscientific and illegal, its practice has reportedly persisted in some areas, violating victim dignity and providing unreliable evidence, thus impeding justice.

2. In rural Bangladesh, the informal justice system known as 'Salish' or 'Gram Adalat' often intervenes in cases of sexual assault. What is a significant negative consequence of this system's involvement for victims of sex crimes, particularly concerning their legal rights and access to formal justice?

A. It consistently provides swift and fair compensation to victims, bypassing lengthy court processes.

B. It frequently pressures victims and their families into 'compromises' or 'settlements' that prioritize community harmony over formal legal prosecution and victim's rights. (correct)

C. It ensures mandatory psychological counseling and rehabilitation for victims, which formal courts often fail to provide.

D. It always refers cases to formal courts if the accused denies the allegations, ensuring due process.

Explanation: Salish often operates outside formal legal frameworks, pressuring victims into informal settlements, victim shaming, and denying them their right to formal legal recourse and justice, often perpetuating impunity for perpetrators.

3. The Nari O Shishu Nirjaton Daman Ain, 2000 (Prevention of Oppression against Women and Children Act), as amended, mandates a specific timeframe for the completion of trials for offenses under the Act. What is the primary systemic challenge in adhering to this statutory timeline (e.g., 180 days), leading to significant case backlogs and prolonged suffering for victims?

A. The lack of public awareness campaigns about the law's provisions.

B. Insufficient number of designated Nari O Shishu Nirjaton Daman Tribunals and a severe shortage of judges and support staff. (correct)

C. The absence of a comprehensive witness protection program, leading to witness non-cooperation.

D. An over-reliance on digital evidence in rural areas where internet access is limited.

Explanation: Despite the statutory timeline, the overwhelming caseload, coupled with an insufficient number of specialized tribunals, judges, and support staff, leads to significant delays and backlogs, undermining the law's intent for swift justice.

4. Under Bangladeshi law, specifically concerning the definition of rape in the Penal Code 1860 and the Nari O Shishu Nirjaton Daman Ain 2000, what is the prevailing legal stance regarding marital rape?

A. It is explicitly criminalized as rape without any exceptions, aligning with international standards.

B. It is criminalized only if the wife is below the age of 18, irrespective of consent.

C. It is not explicitly recognized as rape if the wife is above the age of 13, due to an exception in the Penal Code. (correct)

D. It is treated as a separate, lesser offense with significantly reduced penalties compared to non-marital rape.

Explanation: Section 375 of the Penal Code 1860, which defines rape, includes an exception stating that sexual intercourse by a man with his own wife, if she is not under 13 years of age, is not rape. This effectively exempts marital rape from criminalization for adult wives, though there are ongoing legal challenges to this provision.

5. While the Digital Security Act (DSA) 2018 was enacted to combat cybercrime, including online harassment and sexual exploitation, what is a critical concern raised by human rights organizations regarding its application that could inadvertently harm victims or impede reporting of online sex crimes in Bangladesh?

A. It mandates a minimum of 10 years imprisonment for all online harassment offenses, deterring reporting.

B. It provides overly broad and vague powers to law enforcement, potentially leading to misuse, arbitrary arrests, and chilling effects on free speech, which could deter victims from reporting sensitive issues. (correct)

C. It exclusively focuses on financial fraud and state security, neglecting provisions for online sexual exploitation.

D. It requires victims to publicly disclose their identity and provide a physical address to file any online complaint, compromising their safety.

Explanation: Human rights organizations have criticized the DSA for its broad, vague provisions and non-bailable clauses, which grant extensive powers to law enforcement. This creates a climate of fear and potential misuse, which could deter victims of online sexual harassment or exploitation from reporting, fearing arbitrary arrest or further victimization under the Act itself.

Answer Key

- 1. B** The continued reliance on the 'two-finger test' in practice by some medical professionals, despite its scientific invalidity and abolition.
- 2. B** It frequently pressures victims and their families into 'compromises' or 'settlements' that prioritize community harmony over formal legal prosecution and victim's rights.
- 3. B** Insufficient number of designated Nari O Shishu Nirjaton Daman Tribunals and a severe shortage of judges and support staff.
- 4. C** It is not explicitly recognized as rape if the wife is above the age of 13, due to an exception in the Penal Code.
- 5. B** It provides overly broad and vague powers to law enforcement, potentially leading to misuse, arbitrary arrests, and chilling effects on free speech, which could deter victims from reporting sensitive issues.